

CIVIL PLEADINGS
SUIT FOR RECOVERY UNDER ORDER XXXVII OF CPC

**IN THE COURT OF DISTRICT JUDGE (DISTRICT _____). ROHINI COURT,
DELHI**

**SUIT NO OF 20..
(SUIT UNDER ORDER XXXVII OF THE CODE OF CIVIL PROCEDURE, 1908)**

IN THE MATTER OF:

M/s ABC Pvt. Ltd.
A Company Incorporated Under the
Companies Act, Having Its Registered Office
At, New Delhi.
Through its Director
Shri.....

..... PLAINTIFF

VERSUS

M/s XYZ Ltd.
A Company Incorporated Under The
Companies Act. Having Its Registered Office
At, Delhi
Through its Director
Shri.....

..... DEFENDANT

**SUIT FOR RECOVERY OF MONEY UNDER ORDER XXXVII OF CODE OF
CIVIL PROCEDURE, 1908**

MOST RESPECTFULLY SHOWETH:

1. That the Plaintiff is a Company constituted under the Companies Act having its registered office at B-40, Safdarjung Enclave, New Delhi. Mr. P. Executive Director of the Plaintiff is a duly constituted attorney of the Plaintiff and is authorized and competent to sign and verify the plaint, vakalatnama etc. and to institute this suit on behalf of the Plaintiff.
2. That the Plaintiff carries on the business of construction, engineering and designing. The Plaintiff is a builder of international repute and has earned a big name in its business.
3. That the Defendant is a Company incorporated under the Companies Act having their registered office atChandigarh.
4. That the Defendant approached the Plaintiff for construction of a building for their paper mill at Chandigarh some time in the year

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5. That the plaintiff and the defendant entered into an agreement for the construction of a building as per the site plan and specifications.
 6. That the Plaintiff constructed the building and handed over the possession of the same to the Defendant sometime in (date).
 7. That on(date), the Plaintiff raised the final bill for Rs. 4,19,200/- on the Defendant on account of the construction of their paper mill at Chandigarh against which the Defendant handed over cheque No. 213456 dated(date) for Rs. 4,19,200/- drawn on Punjab National Bank, Shahdara, Delhi to the Plaintiff.
 8. That the cheque was presented by the Plaintiff, however the same was dishonoured upon presentation vide bank memo dated.....
 9. That the Plaintiff immediately informed the Defendant about the dishonour of the said cheque and called upon the Defendant to make the payment of the said amount along with interest @ 18% per annum. However, the Defendant failed to pay the same to the Plaintiff despite repeated requests and reminders.
 10. That the Plaintiff therefore finally issued a legal notice dated (date) to the Defendant calling upon the Defendant to clear the outstanding amount of Rs. 1,39,492/- along with interest at the rate of 18% per annum w.e.f (date) upto the date of payment. However, no payment has been made by the Defendant despite the said notice.
 11. That the Defendant is now liable to pay a sum of Rs. 4,19,200/- along with interest @ 18% per annum from the date on the Plaintiff's bill. The Plaintiff is, claiming interest from.....(date) upto the date of filing of this suit @ 18% per annum.
 12. That the cause of action in favour of the Plaintiff and against the Defendant first arose in 2000 when the Plaintiff was approached by the Defendant for construction of their paper mill. It further arose in..... when the said building was completed and handed over to the Defendant and on..... when the Plaintiff submitted the final bill for Rs. 4,19,200/- to the Defendant. The cause of action arose on all dates when the Plaintiff called upon the Defendant to make the payment and the later failed to comply with it. The cause of action is still subsisting as the Defendant has failed to pay the outstanding amount despite repeated oral and written requests and reminders from the Plaintiff.
 13. The suit is within the period of limitation.
 14. This Hon'ble Court has jurisdiction to entertain this suit because the part of the cause of action arose at Delhi. The contract for construction of the paper mill was entered at Delhi, all the payments upto this date have been made at Delhi and the payment of the outstanding amount was also to be made at Delhi. The Administrative Office of the Defendant is situated at Delhi where they carry on the work for their gain.
 15. The value of this suit for the purposes of court fee and jurisdiction is Rs.-----on which court fee of Rs. _____ is paid.
 16. That this suit is filed under Order XXXVII of the Code of Civil Procedure and no relief has been claimed which does not fall within the ambit of Order XXXVII.

PRAYER:

It is, therefore most respectfully prayed that this Hon'ble Court may be pleased to :-

- (a) Pass a decree for Rs. 4,19,200/-(Four Lakhs Nineteen Thousand and Two Hundred only) with interest @ 18% per annum from(date) upto the date of filing the suit in favour of the Plaintiff and against the Defendant;
- (b) award pendentlite and future interest at the rate of 18% per annum on the above stated amount of Rs. 4,19,200/-(Four Lakhs Nineteen Thousand and Two Hundred only) with interest @ 18% per annum from(date) upto the date of filing the suit in favour of the Plaintiff and against the Defendant;
- (c) award cost of the suit in favour of the Plaintiff and against the Defendant; and
- (d) pass such other and further order(s) as may be deemed fit and proper on the facts and in the circumstances of this case.

Plaintiff

Place:

Date:

Advocate

VERIFICATION:

Verified at Delhi on this 1st day of January 20... that the contents of paras 1 to ... of the plaint are true to my knowledge derived from the records of the Plaintiff maintained in the ordinary course of its business, those of paras to are true on information received and believed to be true and last para is the humble prayer to this Hon'ble Court.

Plaintiff

[**NOTE** : The above plaint must be supported by an Affidavit]

Note: A student should mention the correct paragraphs in the verification and also focus on territorial and pecuniary jurisdiction.

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DRAFT AFFIDAVIT

**IN THE COURT OF DISTRICT JUDGE (DISTRICT _____) DELHI
SUIT NO OF 20..
(SUIT UNDER ORDER XXXVII OF THE CODE OF CIVIL PROCEDURE, 1908)**

IN THE MATTER OF:

M/s ABC Pvt. Ltd.
A Company Incorporated Under The
Companies Act, Having Its Registered Office
At New Delhi.
Through its Director
Shri.....

..... PLAINTIFF

VERSUS

M/s XYZ Ltd.
A Company Incorporated Under The
Companies Act. Having Its Registered
Office At Delhi
Through its Director
Shri.....

..... DEFENDANT

AFFIDAVIT

Sh....., S/O., AGED ABOUT 38 YEARS,
R/O..... in the capacity of the director of M/S ABC Pvt. Ltd..

I, the deponent hereinabove do hereby solemnly affirm and state hereunder:

1. I say that I am the Authorized Representative / Director of the Plaintiff and I am aware of the facts and circumstances of the present suit based upon the records of the Plaintiff maintained in the ordinary course of business and I am duly authorized and competent to swear and file the present suit and affidavit.
2. I say that the accompanying Suit has been drafted and filed by my counsel upon my instructions and contents of the same are true and correct.
3. I say that the documents filed along with plaint are true copies of originals.

DEPONENT

VERIFICATION:

I,, do hereby verify on this ____day of January, 2017 at Delhi that the contents of the above said affidavit are true and correct to my knowledge and information and nothing material has been concealed therefrom.

DEPONENT

* * * * *

SUIT FOR PERMANENT INJUNCTION
IN THE COURT OF SENIOR CIVIL JUDGE (DISTRICT _____), DELHI
SUIT NO. _____ OF 20..

IN THE MATTER OF:

Sh. Om Veer Singh

S/o. _____,

R/o. Sainik Nagar, New Delhi

.... PLAINTIFF

VERSUS

1. Dr. U. Basu

S/o_ _____,

R/o Pragati Vihar Society, Delhi - 92

2. Tapan Kumar,

S/o _____

R/o Pragati Vihar Society, Delhi – 92

..... DEFENDANTS

SUIT FOR PERMANENT INJUNCTION

MOST RESPECTFULLY SHOWETH:

1. That the plaintiff is the permanent resident of the above mentioned address in property bearing no. _____ Uttam Nagar, New Delhi for the last many year and is living with wife and minor children, as a tenant.
2. That the plaintiff is a tenant in respect of the above said property bearing no _____ Uttam Nagar, New Delhi consisting two rooms, latrine and kitchen in the above said premises of Rent Rs.per month excluding electricity and water charges under the tenancy of late Sh _____ who died on(date) and late Sh. ____ used to collect the rent from the plaintiff but late Sh. ____ did not issued any rent receipt to the plaintiff even after several demands made by the plaintiff but he always used to postpone the issue of rent receipt.
3. That the plaintiff spent a huge amount on the construction of these two rooms in the above said premises at the request of Late Sh. ____ and Sh. ____ assured the plaintiff to adjust the said rent (the plaintiff is having the necessary documents/proofs of material for construction of rooms in the above said property). It is also pertinent to mention here that the plaintiff looked after late Sh. _____ many a times, whenever he fell ill.
4. That at present the plaintiff is having the peaceful possassion of premises no. _____ Uttam Nagar, New Delhi and is having the whole necessary documents/record regarding possession (photocopy of Ration Card, School Card is enclosed herewith) but the above said defendants are internded to disturbe the peaceful physical possession of the plaintiff of the above said premises.
5. That the plaintiff is having the whole necessary household goods which are lying/kept in the above said premises and is living peacefully.

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6. That the plaintiff has paid the agreed rent @ Rs. per month to late Sh. _____ upto _____. It is also pertinent to mention here that the legal heirs of late Sh. _____ are not in the knowledge of the plaintiff and at present also the plaintiff is ready to tender the rent before the legal heirs of late Sh. _____.
7. That on _____ (date) the above said defendant came to the above said premises of the plaintiff and threatened the plaintiff to vacate the tenanted premises immediately otherwise the plaintiff would have to face dire consequences, when the plaintiff asked about their identity then they did not disclose the same, instead started throwing household goods forcibly and illegally and started to quarrel with the plaintiff when the local residents/neighbours intervened in the matter then the defendants left the spot after threatening for dire consequences and to dispossess the plaintiff forcibly and illegally in the near future with the help of local goondas. The defendants openly stated that the staff of police post dances at their tune and it is very easy job for them to dispossess any person or to grab the property of any one with the help of the police staff.
8. That immediately on the same date the plaintiff rushed to the police post _____ to lodge his report against the defendants regarding such incident but duty officer did not lodge the report of the plaintiff. The plaintiff was surprised to see that both the defendants were already present at the Police Post
9. That on (date), the plaintiff sent a notice to the defendant no. 1 and copy to Chowki Incharge Police Post by Regd. A.D. (copy of the same is enclosed herewith) but Police Post staff has not taken any action against the defendants for reasons best known to them.
10. That on (date), the defendants along with two unknown persons/ whom the plaintiff can recognise by face, came to the above said premises bearing no. _____ Uttam Nagar, and knocked at the door at odd hours and threatened the plaintiff to come out of the room. The plaintiff saw their faces from gaps of the door and the plaintiff got nervous, and therefore did not come out of two-room apartment. The said persons threatened the plaintiff to vacate the premises immediately. However, then the neighbours gathered there and they restrained the defendants from dispossessing the plaintiff from the above said premises forcibly and illegally. When the neighbours threatened them, they left the spot with a threat to come after one or two days with heavy force to dispossess the plaintiff from the above said premises forcibly and illegally.
11. That on (date), the plaintiff again went to the police post _____ to lodge the report against the defendants but no Police Officer of police post _____ is ready to listen against the defendants and they advised the plaintiff to approach to the competent court of law to seek his remedy and to get injunction order against the defendants and the police post
12. That the plaintiff has no other efficacious remedy except to approach to this Hon'ble court for seeking relief of injunction against the defendants from interfering in the peaceful possession of the premises no. _____ Uttam Nagar, New Delhi.
13. That the cause of action arose on different date when the defendants threatened the plaintiff to vacate the premises no. _____ Uttam Nagar, New Delhi and threatened the plaintiff of dire consequences and further to dispossess him from the above premises bearing no. _____ Uttam Nagar, New Delhi forcibly and illegally. The cause of action lastly arose on _____ when the defendants again threatened and tried to dispossess the plaintiff from

the premises no. __Uttam Nagar, New Delhi forcibly and illegally with the connivance of the Local Police. The cause of action still subsists as the threat of the defendants to dispossess the plaintiff and to create disturbance in the peaceful possession of the premises no.__Uttam Nagar, New Delhi continues.

14. The value of this suit for the purposes of court fee and jurisdiction is Rs. ----- on which court fee of Rs. _____ is paid.

15. This Hon'ble Court has jurisdiction to entertain this suit because the part of the cause of action arose at Delhi and the suit property is situated within the territorial jurisdiction of this Hon'ble Court.

PRAYER:

It is, therefore most respectfully prayed that this Hon'ble Court may be pleased to:

(a) pass the decree for Permanent Injunction in favour of the plaintiff and against the defendants thereby restraining the defendants, their representatives, employees, agents etc. from dispossessing the plaintiff forcibly and illegally from the tenanted premises bearing no.

_____Uttam Nagar, New Delhi and also from interfering in the peaceful possession of the above said premises.

(b) award cost of the suit in favour of the Plaintiff and against the Defendants;

(c) pass such other and further order(s) as may be deemed fit and proper on the facts and in the circumstances of this case.

Plaintiff

Place:

Date:

Advocate

VERIFICATION:

Verified at Delhi on thisof January 20... that the contents of paras 1 to .. of the plaint are true to my knowledge derived from the records of the Plaintiff maintained in the ordinary course of its business, those of paras .. to ... are true on information received and believed to be true and last para is the humble prayer to this Hon'ble Court.

Plaintiff

[NOTE : This plaint has to be supported by an affidavit]

* * * * *

APPLICATION FOR TEMPORARY INJUNCTION
IN THE COURT OF SENIOR CIVIL JUDGE (DISTRICT _____), DELHI

IA NO. _____ OF 20...

IN

SUIT NO. _____ OF 20...

IN THE MATTER OF:

Sh. Om Veer Singh,

S/o _____

R/o

PLAINTIFF/APPLICANT

VERSUS

1. Dr. U. Basu,

S/o _____

R/o

2. Sh. Tapan Kumar,

S/o _____

R/O....

DEFENDANTS/RESPONDENTS

**APPLICATION FOR TEMPORARY INJUNCTION UNDER ORDER XXXIX, RULE
1 & 2 READ WITH SECTION 151 OF THE CODE OF CIVIL PROCEDURE, 1908**

MOST RESPECTFULLY SHOWETH:

1. That the plaintiff has filed a suit for permanent injunction which is pending for disposal before this Hon'ble Court.
2. That the contents of the accompanying suit for permanent injunction may kindly be read as a part and parcel of this application which are not repeated here for the sake of brevity.
3. That the plaintiff/applicant has got a prima-facie case in his favour and there is likelihood of success in the present case.
4. That in case the defendants are not restrained by means of ad-interim injunction for dispossessing the plaintiff from the above said premises no. _____ Uttam Nagar, New Delhi and from interfering in physical peaceful possession of the above said premises, the plaintiff shall suffer irreparable loss and injury and the suit shall become anfractuous and would lead to multiplicity of the cases.
5. That the balance of convenience lies in favour of the plaintiff and against the defendants.

PRAYER:

It is, therefore most respectfully prayed that this Hon'ble Court may be pleased to :-

a) Pass ex-parte ad interim injunction restraining the defendants, their associates, servants, agents and their representatives from interfering into the peaceful physical possession of the plaintiff in the above said premises and from dispossessing the applicant/plaintiff from the same.

b) pass such other and further order(s) as may be deemed fit and proper on the facts and in the circumstances of this case.

Plaintiff /Applicant

Place:

Date:

Advocate

[**NOTE** : This Application has to be supported by an affidavit].

* * * * *

APPLICATION UNDER ORDER XXXIX RULE 2-A
IN THE COURT OF SH. _____ SENIOR CIVIL JUDGE (DISTRICT
_____), DELHI
IA NO. _____ OF 20..
IN
SUIT NO. _____ OF 20..

IN THE MATTER OF:

ABC

...PLAINTIFF/APPLICANT

Versus

XYZ

...DEFENDANT/RESPONDENT

APPLICATION UNDER ORDER XXXIX RULE 2-A READ WITH SECTION 151 OF
THE CODE OF CIVIL PROCEDURE, 1908 ON BEHALF OF THE PLAINTIFF

MOST RESPECTFULLY SHOWETH:

1. That the above noted suit for injunction is pending before this Hon'ble Court and the contents of the plaint be read as part of this application. The plaintiff/applicant is tenant in suit premises bearing House No....., Uttam Nagar, New Delhi and the defendant is landlord of the same.
2. That on an application U/O 39, R 1 & 2 for interim stay against interference in peaceful possession of the plaintiff/applicant as well as dispossession from the said premises, without due process of law was filed by the plaintiff/applicant against the defendant/respondent alongwith the plaint.
3. That on.....(date) this Hon'ble Court was pleased to grant interim injunction in favour of the plaintiff/applicant and against the defendant/respondent for not to interfere in the peaceful possession of the plaintiff/applicant and not to dispossess him without due process of law from the suit property.
4. That on dt.....the defendant/respondent inspite of the service and knowledge of the above interim injunction orders dt, took forcible possession of the suit premises with the help of anti social elements in utter disregard of the orders of this Hon'ble Court and the applicant/plaintiff's household goods were thrown on the roadside.
5. That the defendant/respondent has thus knowingly and willfully disobeyed and violated the injunction orders issued by this Hon'ble Court on.....(date) and he is as such guilty of disobedience of the orders of this Hon'ble Court and has rendered himself

liable to be detained in civil imprisonment and attachment of his property. List of properties is attached.

PRAYER:

It is, therefore most respectfully prayed that this Hon'ble Court may be pleased to:

- a) take appropriate action U/O 39 R 2-A of the Code of Civil Procedure and other provisions of law may be taken against the defendant/respondent and his property may be directed to be attached and he may be directed to be kept in civil imprisonment for the maximum term.
- b) direct restoration of the possession of the suit property to the plaintiff/applicant.
- c) any other appropriate orders/directions may also be passed as may be deemed fit in the facts and circumstances of the case in favour of plaintiff/applicant.

Delhi.

Plaintiff/Applicant

Dated:

Advocate

(Note: An affidavit, duly attested by oath commissioner, in support of this application is to be attached with to this application)

* * * * *

APPLICATION TO SUE AS AN INDIGENT PERSON
IN THE COURT OF....., ROHINI COURT (DIST.....), DELHI
SUIT NO.....OF.....

IN THE MATTER OF :

X _____

S/o _____

R/o _____, New Delhi

...APPLICANT/PLAINTIFF

Versus

Y _____

S/o _____

R/o _____, New Delhi

...RESPONDENT/DEFENDANT

APPLICATION UNDER ORDER XXXIII READ WITH SECTION 151 OF THE
CODE OF CIVIL PROCEDURE, 1908

MOST RESPECTFULLY SHOWETH:

1. That the applicant has filed the above titled suit which is pending disposal before this Hon'ble Court.
2. That the contents of the accompanying suit may kindly be read as a part and parcel of this application which are not repeated here for the sake of brevity.
3. That the applicant is an indigent person and has no movable or immovable property and has no source of income. Therefore is unable to pay the requisite amount of court fee stamp as required by law.
4. That the applicant undertakes to pay the entire court fee if the case is decreed in his favour.
5. That there are sufficient reasons for the acceptance of the present application and for granting permission to the applicant to institute the present suit as an indigent person.

PRAYER:

It is therefore most respectfully prayed that the Hon'ble Court may:

- a. allowed to sue as an indigent person in the interest of justice.
- b. to pass such further orders/directions as it may deem fit and proper.

Applicant

Date:

Place:

Advocate

[**Note:** The petition must be supported by an affidavit].

* * * * *

SUIT FOR EJECTMENT AND DAMAGES
BEFORE THE SENIOR CIVIL JUDGE (DISTRICT _____), DELHI
SUIT NO. _____ OF 20..

IN THE MATTER OF,

Mrs. Surjit Kaur Sahi W/O
Mr. Avinder Singh Sahi S/O
Both R/o _____, Chandigarh

....PLAINTIFFS

VERSUS

Power Grid Corporation of India Ltd.
Hemkunt Chamber, Nehru Place, New Delhi-110029
Through its Chairman/Managing Director

...DEFENDANT

**SUIT FOR EJECTMENT AND DAMAGES FOR WRONGFUL USE AND
OCCUPATION**

MOST RESPECTFULLY SHOWETH:

1. The plaintiff being the owners of flat no. _____ Nehru Place, New Delhi let out the said flat to M/s. National Power Transmission Corporation Limited (a Government of India undertaking) now called as Power Grid Corporation of India Limited, having their registered office at Hemkunt Chamber, Nehru Place, New Delhi-110 019 for a period of three years with effect from(date) vide unregistered Lease deed (copy annexed as Annexure 'A'). The delivery of the possession of the said premises was simultaneous on the said date.
2. That the period of three years referred above starting from expired on That after the expiry of the said Lease the defendant became a month to month tenant of the plaintiffs.
3. That the plaintiffs being in need of the premises in question approached the defendant for vacation of the same on various dates (*give dates*). However, the defendant who were approached through their officers did not agree to the plaintiff's demand. The plaintiffs thereafter served a legal notice through their Counsel, Shri _____ (copy annexed as Annexure 'B') under section 106 of Transfer of Property Act terminating the said tenancy on mid-night of.....(date)
4. That the defendant received the plaintiff's legal notice U/s. 106 of the Transfer of property Act on(date) i.e. clear 15 days before the last day of(date) and thus is a valid notice under the Transfer of Property Act (proof of the service of legal notice is annexed to same as Annexure 'B')
5. That however, the defendant even after receiving the said legal notice have neither vacated the premises nor shown their intention to vacate. Thus the defendant from(date) are in wrongful use and occupation @ Rs. 1,000/- per day as the rate of rent in the area are for such premises prevailing and the plaintiffs have rightly assessed the rate of Rs. 1,000/- per day. The same rate was demanded in the legal notice dated _____. That since the premises were

needed by the plaintiffs for their own purposes they will have to take on rent the premises of same size in the same area where the flat is situated and the plaintiffs have done a market survey during the search for the flat and found that the rate of rent in the area is Rs. 100/- to Rs. 150/- per sq. feet. The plaintiffs own flat which is 370 sq. ft. super area will be available in the market for Rs. 37000/- to 55,500/- per month. The plaintiffs does not have means to take on rent a flat for own purposes at such high rates and thus needed the flat and for this reason asked the defendant to vacate the premises.

6. The defendant is presently paying a monthly rent of Rs. 6808/- per month (Rupees six thousand eight hundred eight) for the plaintiffs flat measuring 370 sq. ft. super area. The plaintiffs premises are not governed by the Delhi Rent Control Act as the rate of rent is more than Rs. 3,500/- and thus the Hon'ble Court has jurisdiction to try the matter.

7. The cause of action in the present case arose on _____ when the plaintiffs approached the defendant for the vacation of the said flat. The cause of action further arose on _____ when the plaintiffs again approached the officers of the defendant for the vacation of the flat who however did not oblige. The cause of action further arose when the plaintiffs served a legal notice dated through their advocate Shri Ajit Panday asking the defendant to vacate the same by The said notice was duly received on However, the defendant did not vacate the flat in question. The cause of action in the present case is a continuing one.

8. That since the property whose possession is sought is situated in Delhi. The Lease for the premises was executed in Delhi and delivery of possession made in Delhi. And since the premises are not covered by Delhi Rent Control Act. The Hon'ble Court has jurisdiction to try the matter.

9. That the court fee payable has been calculated advalorem as per the chart/section 7 of the Court Fee Act on the annual rent received by the plaintiffs. The annual rent is Rs. arrived at by multiplying monthly rent of Rs.....by 12. On this a court fee of Rs. is paid. The plaintiffs undertake to pay any additional court fee that may be found due by the Hon'ble court.

PRAYER:

It is, therefore most respectfully prayed that this Hon'ble Court may be pleased to:

- (i) pass a decree for ejectment against the defendant and in favour of plaintiffs ;
- (ii) pass a decree for payment of damages @ Rs. 1,000/- per day for wrongful use and occupation of the flat by the defendant ;
- (iii) Any other relief deemed fit and proper may also be given.
- (iv) Costs of the case may also be given.

PLAINTIFFS

Delhi

Dated

ADVOCATE

VERIFICATION :

Verified at Delhi on ... day..... of , 20... that the contents of paras 1 to are true to our personal knowledge and those of paras ... to are true & correct on the basis of legal advice received and belived to be true. Last para is prayer to the Hon'ble Court.

PLAINTIFFS

[NOTE : This plaint has to be supported by an affidavit]

* * * * *

SUIT FOR SPECIFIC PERFORMANCE OF CONTRACT
IN THE COURT OF....., ROHINI COURT (DIST.....), DELHI
SUIT NO.OF.....

IN THE MATTER OF :

X _____

S/o _____

R/o _____, New Delhi

...PLAINTIFF

Versus

Y _____

S/o _____

R/o _____, New Delhi

...DEFENDANT

SUIT FOR SPECIFIC PERFORMANCE OF CONTRACT

MOST RESPECTFULLY SHOWETH:

1. That the plaintiff is a resident of.....
2. That the defendant is the absolute owner of the property bearing no.....admeasuring (give details of the property) (hereinafter referred to as the suit property).
3. That the plaintiff was in need of the property for residential purpose and came to know that the Defendant is interested in selling the suit property.
4. That the plaintiff approached the defendant for purchasing the suit property on.....(date) and the plaintiff and the defendant discussed the terms and conditions.
5. That on....(date), the plaintiff and the defendant entered into an agreement in writing whereby the defendant agreed to sell his property to the plaintiff for Rs.....The copy of the agreement is annexed as Annexure A.
6. That the plaintiff paid Rs..... to the defendant as earnest money and it was decided that the balance of Rs.....will be paid on..... and the sale deed will be executed on the possession of the suit property will be handed over to the plaintiff on the payment of the balance amount.
7. That on.....(date), the plaintiff approached the defendant and requested him to execute the sale deed along with handing over of the possession of the suit property to the plaintiff. However, the defendant refused to execute the sale deed.
8. That the plaintiff approached the defendant for execution of the sale deed on various occasions (mention the dates), however, the defendant refused to execute the sale deed on one pretext or the other.
9. That the plaintiff finally issued a legal notice dated (date) to the defendant calling upon the defendant to perform his part of the agreement by executing the sale deed and handing

over the possession of the suit property to the plaintiff. However, the defendant failed to comply with his part of the agreement and did not reply to the legal notice.

10. That the plaintiff is ready and willing to perform his part of agreement by paying the balance amount.

11. That the cause of action arose on.....(date) when the defendant agreed to sell the suit property to the plaintiff. The cause of action further arose on..... It further arose.....That the cause of action is still subsisting as the defendant has refused to perform his part of the agreement.

12. That the suit is within the period of limitation.

13. That this Hon'ble Court has jurisdiction to entertain this suit because the cause of action arose within the territorial jurisdiction of the court.

14. That the requisite court fees have been paid.

PRAYER:

It is, therefore most respectfully prayed that this Hon'ble Court may be pleased to:

- a. pass a decree of specific performance of the agreement in favour of the plaintiff and against the defendant directing the defendant to execute the sale deed and hand over the possession of the suit property to the plaintiff,
- b. award cost of the suit in favour of the plaintiff and against the defendant; and
- c. pass such other and further order(s) as may be deemed fit and proper on the facts and in the circumstances of this case.

Plaintiff

Place:

Date:

Advocate

VERIFICATION:

Verified at Delhi on this 1st day of January 20... that the contents of paras 1 to ... of the plaint are true to my knowledge derived from the records of the Plaintiff maintained in the ordinary course of its business, those of paras to 14 are true on information received and believed to be true and last para is the humble prayer to this Hon'ble Court.

Plaintiff

[NOTE : The above plaint must be supported by an Affidavit]

* * * * *

MODEL DRAFT FOR WRITTEN STATEMENT
IN THE COURT OF SHRI CIVIL JUDGE
(DISTRICT), DELHI
SUIT NO. OF 2017

X..... PLAINTIFF

VERSUS

Y..... DEFENDANT

WRITTEN STATEMENT ON BEHALF OF THE DEFENDANT

MOST RESPECTFULLY SHOWETH:

PRELIMINARY OBJECTIONS:

1. That the suit is barred by limitation under Article of the Limitation Act and is liable to be dismissed on this ground alone.

2. That this Hon'ble Court has no jurisdiction to entertain and try this suit because.....

3. That the suit has not been properly valued for the purpose of court fees and jurisdiction and is therefore liable to be rejected outrightly.

4. That there is absolutely no cause of action in favour of the Plaintiff and against the Defendant. The suit is therefore liable to be rejected on this ground also.

5. That the suit is bad for non-joinder of necessary parties, namely

6. That the suit is bad for mis-joinder of Z.

7. That the suit is barred by the decree dated passed in suit No..... titled Y Versus X by Sh., Sub-Judge, Delhi, The present suit is therefore barred by the principle of res-judicata and therefore liable to be dismissed on this short ground alone.

8. That the suit is liable to be stayed as a previously instituted suit between the parties bearing No..... is pending in the Court of Sh., Sub-Judge, Delhi

9. That the suit has not been properly verified in accordance with law.

10. That the Plaintiff's suit for permanent injunction is barred by Section 41 (h) of the Specific Relief Act since a more efficacious remedy is available to the Plaintiff. The Plaintiff has alleged breach of contract by the Defendant. Assuming, though not admitting, that the Defendant has committed any alleged breach, the remedy available to the Plaintiff is by way of the suit for specific performance.

11. That the Plaintiff's suit for permanent injunction is also barred by Section 41 (i) of the Specific Relief Act because he has not approached this Hon'ble Court with clean hands and his conduct has been most unfair, dishonest and tainted with illegality.

12. That the Plaintiff's suit for declaration is barred by Section 34 of the Special Relief Act as the plaintiff has omitted to claim further consequential relief available to him.

13. That the suit is barred by Section 14 of the Specific Relief Act as the contract of personal service cannot be enforced.

14. That the suit is liable to be dismissed outrightly as the Plaintiff has not given the mandatory notice under Section 80 of the Code of Civil Procedure/Section 14 (1) (a) Rent Control Act/Section 478 of the Delhi Municipal Corporation Act.

15. That the suit is liable to be dismissed as the Plaintiff firm is not registered under Section 69 of the Indian Partnership Act and as such is not competent to institute this suit.

16. That the present suit is barred by Section 4 of the Benami Transaction (Prohibition) Act, 1988, and is therefore liable to be dismissed outrightly.

ON MERITS :

Without prejudice to the preliminary objections stated above, the reply on merits, which is without prejudice to one another, is as under:-

1. That the contents of para 1 of the plaint is correct and is admitted.
2. That the contents of para 2 of the plaint are denied for want of knowledge. The Plaintiff be put to the strict proof of each and every allegation made in the para under reply.
3. That the contents of para 3 of the plaint are absolutely incorrect and are denied. It is specifically denied that the Plaintiff is the owner of the suit property. As a matter of fact, Mr. N is the owner of the suit property.
4. That with respect to para 4 of the plaint, it is correct that the Defendant is in possession of the suit property. However, the remaining contents of para under reply are absolutely incorrect and are denied. It is specifically denied that.....
- 5-10. (Each and every allegation must be replied specifically depending upon the facts of each case. The above reply on merits is therefore only illustrative in nature.)
11. That para 11 of the plaint is incorrect and is denied. There is no cause of action in favour of the Plaintiff and against the Defendant because..... The plaintiff is therefore liable to be rejected outrightly.
12. That the contents of para 21 is not admitted. This Hon'ble Court has no jurisdiction to entertain this suit because the subject matter of this suit exceeds the pecuniary jurisdiction of this Hon'ble Court.
13. The the contents of para 13 is not admitted. The suit has not been properly valued for the purpose of court fee and jurisdiction. According to the Defendant the correct valuation of the suit is Rs.....

PRAYER:

It is, therefore most respectfully prayed that this Hon'ble Court may be pleased to:

- a) Dismiss the suit of the plaintiff.
- b) Award costs to the defendant.

c) Pass any other just and equitable order as deemed fit in the interest of justice.

DEFENDANT

Delhi

Dated

ADVOCATE

VERIFICATION :

Verified at Delhi on ... day..... of , 20... that the contents of paras 1 to Of the preliminary objection and para...to... of reply on merits are true to my personal knowledge and those of paras ... toof preliminary objection and para...to... of reply on merits are true & correct on the basis of legal advice received and belived to be true. Last para is prayer to the Hon'ble Court.

DEFENDANT

[NOTE : Counter Claim, Set off can be joined in the Written Statement and the same may be verified and supported by affidavit]

* * * * *

CAVEAT UNDER SECTION 148-A OF CPC

IN THE HIGH COURT OF DELHI AT NEW DELHI

CAVEAT NO. /2017

**(ARISING OUT OF THE JUDGMENT AND ORDER DATED IN SUIT NO.
..... TITLED AS ABC v. XYZ PASSED BY SH. _____, CIVIL JUDGE,
_____ DISTRICT, DELHI)**

In the matter of:

XYZ

S/o

R/o

...Petitioner

Versus

ABC

S/o

R/o

...Respondent/Caveator

CAVEAT UNDER SECTION 148-A OF THE CODE OF CIVIL PROCEDURE, 1908
BY RESPONDENT/CAVEATOR.

Most Respectfully Showeth:

1. That Sh. _____, Civil Judge, _____ District, Delhi has passed order against appellants in Civil Suit No. titled as ABC v. XYZ on, whereby application for amendment U/O VI Rule 17 CPC filed by plaintiff/would be petitioner, was dismissed.
2. That the caveator is expecting that the plaintiff/would-be petitioner may file a Civil Misc. (Main) Petition under Article 227 of Constitution of India against said order in this Hon'ble Court as such this caveat is being filed.
3. That the caveator has a right to appear and contest the Civil Misc. (Main) Petition if preferred by the plaintiff/would-be petitioner.
4. That the caveator desires that he may be given the notice of the filing of the Civil Misc. (Main) Petition as and when the same is filed by the plaintiff/would-be petitioner, to enable caveator to appear at the time of hearing for admission and no stay may be granted without hearing the caveator/respondent.
5. That a copy of this caveat has been sent by Regd. A/D post to the plaintiff/would be Petitioner.

PRAYER:

It is, therefore, most respectfully prayed that nothing may be done in Civil Misc. that may be filed by the petitioner without notice to the caveator or his counsel.

Caveator

Delhi

Dated:

Advocate

(Note: An affidavit of the caveator, duly attested by oath commissioner, in support of this application is to be attached with to this application.)

* * * * *

TRANSFER PETITION UNDER SECTION 25 OF CPC

Sec 25 of CPC 1908 states that on an application made by a party and after notice to the parties and after hearing them the Supreme Court may at any stage if satisfied that such an order is needed in the interest of justice may under this section order that any suit, appeal or any other proceeding be transferred from a High Court or other civil court in one state to High Court or other civil court in another state.

**IN THE SUPREME COURT OF INDIA
ORIGINAL CIVIL JURISDICTION
TRANSFER PETITION (CIVIL) NO. _____ OF 2017
(UNDER SECTION 25 OF THE CODE OF CIVIL PROCEDURE, READ WITH
ORDER XLI, SUPREME COURT RULES, 2013.)**

IN THE MATTER OF:

J _____ S/o _____ R/O _____ ...PETITIONER
VERSUS

1. Union of India,
Through its Secretary,
Ministry of Defence,
South Block, New Delhi-110001
2. Chief of Air Staff,
Vayu Bhawan,
New Delhi-110001.
3. Air Officer Commanding –in-Chief
Western Air Command,
Subrato Park, New Delhi-110010
4. Group Captan A _____
Station Commander, Air Force
Station Suratgarh.
5. Presiding Officer
Court Martial, Subrato Park, New Delhi.

...RESPONDENTS

AND IN THE MATTER OF:

TRANSFER OF CIVIL WRIT PETITION NO.727/2015 FILED BY THE PETITIONER AGAINST THE RESPONDENTS PENDING IN THE HIGH COURT OF DELHI AT NEW DELHI, TO THE HIGH COURT OF JUDICATURE AT ALLAHABAD.

To

The Hon'ble Chief Justice of India,
And his Companion Justices of the Hon'ble Supreme Court of India at New Delhi

MOST RESPECTFULLY SHOWETH:

1. That the petitioner is seeking Transfer of Civil Writ Petition No.727/2015 filed by the Petitioner against the respondents pending in the High Court of Delhi at New Delhi, to the High Court of Judicature of Allahabad, titled "JWO BP Misra Versus Union of India & Ors."

2. **BRIEF FACTS:**

i. The Petitioner joined as Airmen in the Trade Flight Mechanic Air Frame and later after conversion course became Air Frame Fitter after passing the necessary examination and training. During the period petitioner also gained a promotion to the rank of Corporal, Sergeant and later Junior Warrant Officer – Class-II, a Gazetted post. The Petitioner was also awarded three good conduct badge Pay each after 4 year of Services for very good character and good proficiency in his trade. There was no whisper of any kind of misconduct while working at various places during 22 year of service as per the directions of the Respondents. The same is a matter of record and speaks in volumes about the Character and Trade proficiency of the petitioner.

ii. The Petitioner got his last rank after passing due examination and consideration of last Annual Confidential Report (ACRS) Significantly in the year 1998 the Petitioner was awarded in assessment 94 / 100 as exceptional which speaks about the high caliber of the Petitioner in his trade.

iii. The Petitioner was compelled to file a Redress of Grievances ROG against Respondent No.6 for non grant of leave and unwanted harassment in many ways i.e. sending on temporary duty assigning Secondary Duties, not granting of leave and denial of even monthly salary for four months which is a matter of record. The Petitioner has one son suffering with asthmatic problem and came on posting to present place as per the Medical advice of the authorities.

iv. The Petitioner was charge sheeted and later the same was dropped as he has complained about the grievances against his Squadron Technical Officer (STO) for illegal harassment.

v. The petitioner has all the apprehensions of his life as such filed a FIR at the Police Station for seeking protection from the officials of the Respondents. The Security Officer of the Respondents gave undertaking before the Police on behalf of Respondents that no harm will be done to the Petitioner. After withdrawing the Complaint by the Petitioner, the Petitioner was immediately sent on temporary duty to Nalia in Gujarat due to irritation of complaint. The Petitioner had no alternative but to proceed as directed without being his turn. The harassment of the Petitioner continued at the behest of the Respondent No.6 Commanding Officer C.O. and his Subordinates. After strong and heavy earth quake in whole of the Gujarat in the morning the Petitioner was directed to go back to his Unit knowing fully well of non-availability of transport which was totally abandoned due to the earth quake, the same is matter of record. However the Petitioner has to beg for his food and somehow reached his unit to avoid wrath of the Respondents by way of disciplinary action for misconduct of not disobedience.

vi. The Petitioner aggrieved by such highhandedness of the Respondents filed an Appeal under 26 of Air Force Act for redressal of his grievances. The Petitioner gave a reminder for disposal of his appeal under Section 26 of the Air Force Act. The Appeal was rejected without speaking order with stereo type of order devoid of merits. The Petitioner filed application for permission to file Civil Case and for grant of leave. The same was not granted by the Respondents and even denied the acknowledgment of the receipt. Application for extension of service was rejected and ordered to be discharged. The Petitioner was orally threatened to abstain from raising such applications.

vii. The Petitioner was put under Close arrest without informing his family as even directed by the Hon'ble Supreme Court in D.K. Basu's case, which curtails the liberty of the Petitioner in a illegal manner. The reasons are yet to be known. The Petitioner sought interview with the Station Commander which was granted later on 9.10.2001. The Station Commander instead of redressing of the grievance and consoling the Petitioner for his illegal close arrest, further threatened the Petitioner with a dire consequence and of further putting him under close arrest and threatened for Court Martial.

viii. The Petitioners Summary of Evidence 2nd is completed in an illegal manner without providing him a copy of the previous Summary of Evidence which is mandatory to meet the requirements of principles of Natural Justice. The petitioner is now informed that he is likely to Court martialled by way of GCM. and since last 4 months the Petitioner is under constant threat of disciplinary action at the hands of the Respondents for no fault of his where as all officials under the Respondents have joined hands together to harass the Petitioner by all means and make example case for others. The Petitioners extension application is also rejected as the last Respondent has spoiled his ACR for the year 2003 and 2005 without any communication to the Petitioner or in a Counseling to the Petitioner as provided under the provisions of the Air Force Act. Hence Writ Petition No.727 of 2015 filed for initiation of appropriate enquiry and disciplinary action against the officials for illegal harassment of the Petitioner and for quashing of the ACRs 2003 & 2005 and subsequent order of discharge.

ix. Respondents decided to conduct General Court Martial in retaliation to certain observations and queries by this Hon'ble Court to explain the reason of close arrest in September, 2014. That no legal aid or defence Advocate was provided. All members were ignorant about law and worked at the tune of the Judge Advocate and all pleas of petitioner were disallowed in arbitrary manner. Preliminary objections were not taken by General Court Martial on record. The Petitioner approached Hon'ble High Court of Delhi by way of Civil Misc. Application in which notice was issued. General Court Martial without adhering to law and provisions and principles of natural justice passed the order, "to be reduced to the rank of Cpl. From JWO (JCO) subject to confirmation." The copy of the order was not given to the Petitioner to deprive him to approach this Hon'ble Court. The Petitioner was released from open arrest which speaks in volumes about the high-handedness of the Respondents to deprive him of any legal aid or counseling by any one. Proceeding copy of General Court Martial were denied to the Petitioner by which denied the statutory right of Appeal u/s 161 (1) of Air Force Act. Even affidavit of defence witness was not taken on record.

x. The Petitioner was discharged. Pension stopped. Regular threat to life is given as numerous incidents of elimination of Airmen who raise voice against commissioned officers.

The Petitioner is in bad financial state and has no money to meet his day to day expenses. The petitioner has no means to incur heavy expenditure in travelling to Delhi for conduct of his case. The petitioner also feels that his life will be put to an end by the respondents. Fearing safety of his life the petitioner has moved his family bag and baggage to District Pratap Garh (U.P.). That the High Court of judicature at Allahabad are near to the place of residence of the petitioner and the petitioner feels that the writ Petition No. 727 of 2015 titled B.P. Mishra V/s

U.O.I. be transferred to the High Court of Judicature at Allahabad as the petitioner has no trust and faith in the respondent and they can stoop to any level and the petitioner fears for his life. Hence the petitioner is seeking transfer of his case to the High Court at Allahabad.

3. This Transfer Petition is being filed by the Petitioner for transferring the Civil Writ Petition No.727/2015 filed by the Petitioner at the High Court of Delhi at New Delhi on amongst others the following grounds.

GROUND

I. Because the Petitioners have no trust and faith in the respondents as they are prejudiced and using influence and every other illegal method to defeat the petitioner. Thus the petitioner is seeking the transfer of the case from the High Court of Delhi at New Delhi to High Court of Judicature at Allahabad.

II. Because the petitioner have no trust and faith in Opposite party as they had in past acted with malice and making life threatening attempts and petitioner fears for his and of his family's life.

III. Because the petitioner is discharged from service and is not getting Pension and dues and petitioner is reduced in state of penury and is not in a position to conduct case in Delhi.

IV. Because on 31.5.2015 the Petitioner was discharged. His pension stopped and he received regular threat to life is given as numerous incidents of elimination of Airmen who raise voice against commissioned officers.

V. Because the Petitioner is in bad financial state and has no money to meet his day to day expenses. The petitioner has no means to incur heavy expenditure in travelling to Delhi for conduct of his case. The petitioner also feels that his life will be put to an end by the respondents. Fearing safety of his life the petitioner has moved his family bag and baggage to District Pratapgarh (U.P.). That the High Court of judicature at Allahabad are near to the place of residence of the petitioner and the petitioner feels that the writ Petition No. 727 of 2015 titled B.P. Mishra V/s U.O.I. be transferred to the High Court of Judicature at Allahabad as the petitioner has no trust and faith in the respondent and they can stoop to any level and the petitioner fears for his life.

VI. Because in the facts and circumstances stated above, it would be in the interest of justice that the said Civil Writ Petition No. 727/2015 filed by the petitioner against the respondents pending in the High court of Delhi at New Delhi be transferred to High Court of Judicature at Allahabad (U.P.). Even otherwise there is no likelihood of disposal of writ petition No. 727/2015 due to heavy back log of cases. The copy of the civil writ petition No.727 / 2015 is Annexure P-1.

4. That the petitioner has not filed any other similar transfer petition before this Hon'ble Court so far in respect of this matter.

PRAYER:

In view of the above facts and circumstances, it is respectfully submitted that this Hon'ble Court may be pleased:

- a) To pass order for transfer of the Civil Writ Petition No. 727/2015 filed by the Petitioner against the respondent titled "JWO BP Mishra Vs. Union of India" from High Court Delhi at New Delhi to the High Court of Judicature at Allahabad.
- b) Any other and further order as may be deemed fit and proper may also be passed.

FILED BY:

DATE OF DRAWN _____

DATE OF FILING

ADVOCATE FOR THE PETITIONER

NEW DELHI

[**NOTE** : To be supported by an affidavit]

* * * * *

EXECUTION APPLICATION
IN THE COURT OF _____
EXECUTION PETITION NO. _____ OF 2017
IN
CIVIL SUIT NO. _____ OF 2015

A ... DECREE HOLDER

Versus

B ...JUDGMENT DEBTOR

THE DECREE HOLDER PRAYS FOR EXECUTION OF THE DECREE/ORDER DATED DD/MM/YYYY, THE PARTICULARS WHEREOF ARE STATED IN THE COLUMNS HEREUNDER:-

Police Station:-

1.	No. of Suit	
2.	Name of Parties	
3.	Date of Decree/order of which execution is sought	
4.	Whether an appeal was filed against the decree / order under execution	
5.	Whether any payment has been received towards satisfaction of decree-order	
6.	Whether any application was made previous to this and if so their dates and results	
7.	Amount of suit along with interest as per decree or any other relief granted by the decree	
8.	Amount of costs if allowed by Court	
9.	Against whom execution is sought	
10	In what manner court's assistance is sought	

PRAYER:

The Decree Holder prays that the execution of the decree passed in the case may be granted.

Place:

Decree Holder

Date:

Advocate of Decree Holder

VERIFICATION:

Verified on.....at.....that the contents of this application are true to my knowledge or belief.

Holder

Decree

Note: Students are required to fill in the details in the table above as per the facts of the case.

** The application for execution shall be accompanied by a duly certified copy of the decree or order, or by the Original, or by the Minutes of decree or order until the decree or order is drawn up. Judge may allow execution before sealing of decree order.*

PETITIONS UNDER THE HINDU MARRIAGE ACT, 1955

Before giving any model form of application under the matrimonial laws, it is necessary to know what kind of petitions are contemplated in matrimonial causes. The Hindu Marriage Act, 1955, has provided for the following important petition:

1. Petition for restitution of conjugal rights (sec. 9)
2. Petition for judicial separation (sec. 10)
3. Petition for void or nullity of marriage (sec. 11)
4. Petition for divorce by dissolution of marriage (sec. 13)
5. Petition for maintenance *pendent lite* (sec. 24)
6. Petition for alimony and maintenance (sec. 25)
7. Petition for custody of children (sec. 26)

Such reliefs are also obtained under the Special Marriage Act, 1954, the Indian Divorce Act, 1889, and other personal laws.

Under the rules framed by the Bombay High Court it is necessary to state the following facts in the petition for (i) judicial separation, (ii) Nullity of marriage, and (iii) Divorce in addition to the point given in O. VII, r. 1, C.P.C. and S. 20(1) of the Hindu Marriage Act. (i) Place and date of marriage, (ii) name of the state of domicile of the wife and husband before and after marriage (iii) the principal permanent address where there is any cohabited including the address where they raised together, (iv) birth or ages of such issues, (v) whether there had been any proceeding in India, if so what were they and with what result, and on behalf of whom? (vi) Matrimonial offences or offence charged should be set out in separate paragraphs with time and place of its commission, (vii) property presented at or about the time of marriage and jointly owned by both husband and wife, and (viii) relief or reliefs prayed for.

All matrimonial petitions shall lie in the Court of the District Judge (Family Courts wherever established) within whose local limits of the jurisdiction the marriage was solemnised, or within whose local limit of the jurisdiction the parties to the marriage last resided together, or within whose jurisdiction the respondent has been residing; but in the Metropolis of Mumbai, Calcutta, Chennai and Ahmadabad, these petition shall lie in the City Civil Court of the respective metropolitan town.

By virtue of Section 14 Hindu Marriage Act, 1955, the Petition for Divorce cannot be presented within one year of marriage unless leave is taken from the court to present before on the ground of exceptional hardship.

The Petitions under Hindu Marriage act are to be presented before District Judge within the local limits of whose jurisdiction

- (a) The Marriage was solemnized; or

-
- (b) The respondent at the time of presentation of the petition, resides, or
 - (c) The parties to the marriage last resided together, or
 - (d) In case the wife is the petitioner, where she is residing on the date of presentation of the petition, or
 - (e) The petitioner is residing at the time of presentation of the petition in a case where the respondent is, at the time, residing outside the territories to which the Act extends, or has not been heard of as being alive for a period of seven years or more by those persons who would naturally have heard of him if he were alive.

The districts in which the Family Courts have been established under Family Courts Act, 1984, the petitions shall lie before the Principal Judge, Family Court (Section 7 and 8 Family Courts Act, 1984)

Every petition shall state distinctly the following facts-

- (a) That the marriage of the petitioner was solemnized with the respondent in accordance with Hindu rites and ceremonies onat.....and affidavit to the effect has to be enclosed
- (b) That there is no collusion between the petitioner and the other party in presenting the petition for annulment of the marriage. This fact need not be pleaded in case of petition under section 11 of the Act.
- (c) In case the Petition for Divorce is filed on the ground of cruelty of the respondent, it has to be specifically pleaded that the petitioner has not condoned the act of the respondent.
- (d) Where the petition for divorce on mutual consent is filed, affidavits of both the parties are to be attached.
- (e) In case of petition for Restitution of Conjugal rights, it has to be pleaded that the respondent has withdrawn from the company of petitioner without any reasonable cause.
- (f) In the petition under the Act, the details regarding the status and place of residence of the parties to the marriage before the marriage and at the time of presentation of the petition have to be provided.

* * * * *

PETITION FOR RESTITUTION OF CONJUGAL RIGHTS

IN THE COURT OF PRINCIPAL JUDGE, FAMILY COURT (DISTT.), DELHI

HMA PETITION NO. OF 2017

IN THE MATTER OF :

X

s/o

R/o PETITIONER

VERSUS

Y

w/o

R/o RESPONDENT

PETITION FOR RESTITUTION OF CONJUGAL RIGHTS UNDER SECTION 9
OF THE HINDU MARRIAGE ACT, 1955

Most Respectfully Showeth:

1. That a marriage was solemnized between the parties according to Hindu rites and ceremonies on(date) at.....(place). The said marriage is registered with the Registrar of marriage. A certified copy of the relevant extract from the Hindu Marriage Register..... is filed herewith. An affidavit, duly attested declaring and affirming these facts is also attached.
2. That the status and place of residence of the parties to the marriage before the marriage and at the time of filing the petition are as follows:

Husband				Wife		
Status	Age	Place of	Residence	Status	Age	Place of Residence
(i) Before marriage						
(ii) At the time of						
filing the petition						

(Whether a party is a Hindu by religion or not is as part of his or her status).

3. That the (In this paragraph state the names of the children, if any, of the marriage together with their sex, dates of birth or ages).
4. That the respondent has, without reasonable excuse, withdrawn from the society of the petitioner with effect from.....(The circumstances under which the respondent withdrew from the society of the petitioner be stated in few paragraphs depending upon the facts).
5. That the petition is not presented in collusion with the respondent.

-
6. That there has not been any unnecessary or improper delay in filing the petition.
7. That there is no other legal ground why relief should not be granted.
8. That there have not been any previous proceedings with regard to the marriage by or on behalf of any party.

Or

There have been the following previous proceedings with regard to the marriage by or on behalf of the parties:

Serial	Name of Parties	Nature of Proceedings with Section of that Act	Number and year of the case	Name and location of court	Result
--------	-----------------	--	-----------------------------	----------------------------	--------

(i)

(ii)

(iii)

(Choose whichever is applicable to the facts)

9. That the marriage was solemnized at..... The parties last resided together at..... The parties are now residing at.....(Within the local limit of the ordinary original jurisdiction of this Court.)

10. That this Hon'ble Court has jurisdiction to try and entertain this petition.

PRAYER:

In view of the above facts and circumstances, it is, therefore, most respectfully and humbly prayed that this Hon'ble Court may be pleased to grant a decree of restitution of conjugal rights under Section 9 of the Hindu Marriage Act in favour of the petitioner. Any other relief/order/Direction this Hon'ble Court may deem fit in the interest of justice and equity.

PETITIONER

Through

Place: Delhi

Date:

ADVOCATE

VERIFICATION:

The above named petitioner states on solemn affirmation that paras 1 toof the petition are true to the petitioner's knowledge and parasto are true to the petitioner's information received and believed to be true by him/her.

Verified at (Place)

Dated.....

PETITIONER

[NOTE : AN AFFIDAVIT OF PETITIONER IS TO BE APPENDED]

* * * * *

PETITION FOR JUDICIAL SEPARATION
IN THE COURT OF PRINCIPAL JUDGE, FAMILY COURT (DISTT.), DELHI
HMA PETITION NO. _____ OF 2017

IN THE MATTER OF :

X

s/o

R/o PETITIONER

VERSUS

Y

w/o

R/o RESPONDENT

PETITION FOR JUDICIAL SEPARATION UNDER SECTION 10
OF THE HINDU MARRIAGE ACT, 1955

Most Respectfully Showeth:

1. That the marriage was solemnized between the parties according to Hindu rites and ceremonies on(date) at.....(place). The said marriage is registered with the Registrar of marriage. A certified copy of the relevant extract from the Hindu Marriage Register.....is filed herewith.
2. That the status and place of residence of the parties to the marriage before the marriage and at the time of filing the petition are as follows:

Husband			Wife		
Status	Age	Place of Residence	Status	Age	Place of Residence
(i) Before marriage					
(ii) At the time of filling the petition					

(Whether a party is a Hindu by religion or not is as part of his or her status).

3. That the (In this paragraph state the names of the children, if any, of the marriage together with their sex, dates of birth or ages).
4. That the respondent has (any one or more of the grounds available under section 10 may be pleaded here. The matrimonial offences charged should be set in separate paragraphs with times and places of their alleged commission. The facts on which the claim to relief is founded should be stated in accordance with the Rules and as distinctly as the nature of the case permits.)
5. (where the ground of petition is on the ground specified in clause (i) of section 13 (1). The petitioner has not in any manner been necessary to or connived at or condoned the acts complained of.

6. (Where the ground of petition is cruelty). The petitioner has not in any manner condoned the cruelty.

7. That the petition is not presented in collusion with the respondent.

8. That there has not been any unnecessary or improper delay in filing the petition.

9. That there is no other legal ground why relief should not be granted.

10. That there have not been any previous proceedings with regard to the marriage by or on behalf of any party.

Or

There have been the following previous proceedings with regard to the marriage by or on behalf of the parties:

Serial	Name of Parties	Nature of Proceedings with Section of that Act	Number and year of the case	Name and location of court	Result
--------	-----------------	--	-----------------------------	----------------------------	--------

(i)

(ii)

(iii)

(iv)

(Choose whichever is applicable to the facts)

11. That the marriage was solemnized at..... The parties last resided together at..... The parties are now residing at..... (Within the local limit of the ordinary original jurisdiction of this Court)

12. That this Hon'ble Court has jurisdiction to try and entertain this petition

PRAYER:

In view of the above facts and circumstances, it is, therefore, most respectfully and humbly prayed that this Hon'ble Court may be pleased to grant a decree of Judicial Separation under Section 10 of the Hindu Marriage Act in favor of the petitioner.

Any other relief/order/Direction this Hon'ble Court may deem fit in the interest of justice and equity.

PETITIONER

Place: Delhi

Date:

ADVOCATE

VERIFICATION:

The above named petitioner states on solemn affirmation that paras 1 to___ of the petition are true to the petitioner's knowledge and paras___ to_____ are true to the petitioner's information received and believed to be true by him/her.

Verified at_____(Place)

Dated_____

PETITIONER

[Note : An affidavit of petitioner is to be appended.

* * * * *

PETITION FOR DISSOLUTION OF MARRIAGE BY A DECREE OF DIVORCE

IN THE COURT OF PRINCIPAL JUDGE, FAMILY COURT (DISTT.), DELHI

HMA PETITION NO. _____ OF 2017

IN THE MATTER OF:

X _____

S/O

R/O

... PETITIONER

VERSUS

Y _____

W/O

R/O

...RESPONDENT

PETITION FOR DISSOLUTION OF MARRIAGE BY A DECREE OF DIVORCE
UNDER SECTION 13 OF THE HINDU MARRIAGE ACT, 1955

Most Respectfully Showeth:

1. That the marriage was solemnized between the parties according to Hindu rites and ceremonies after the commencement of the Hindu Marriage Act on _____ at _____. The said marriage is registered with the Registrar of marriage. A certified copy of the relevant extract from the Hindu Marriage Register is filed herewith.
2. That the status and place of residence of the parties to the marriage before the marriage and at the time of filing the petition are as follows:

	Husband			Wife		
	Status	Age	Place of Residence	Status	Age	Place of Residence
(i) Before marriage						
(ii) At the time of filing the petition						

(Whether a party is a Hindu by religion or not is as part of his or her status).

3. (In this paragraph state the names of the children, if any, of the marriage together with their sex, dates of birth or ages).
4. That the respondent.....(one or more of the grounds specified in section 13 may be pleaded here. The facts on which the claim to relief is founded should be stated in accordance with the Rules and as distinctly as the nature of the case permits. If ground as specified in clause (i) of Section 13 (i) is pleaded, the petitioner should give particulars as nearly as he can, of facts of voluntary sexual intercourse alleged to have been committed. The

matrimonial offences/offences charged should be set in separate paragraphs with the time and places of their alleged commission.)

5. (Where the ground of petition is on the ground specified in clause (i) of sub-section (1) of Section 13. The petitioner has not in any manner been accessory to or connived at or condoned the act(s) complained of).

6. (Where the ground of petition is cruelty). The petitioner has not in any manner condoned the cruelty.

7. That the petition is not presented in collusion with the respondent.

8. That there has not been any unnecessary or improper delay in filing the petition.

9. That there is not other legal ground why relief should not be granted.

10. That there have not been any previous proceedings with regard to the marriage by or on behalf of any part.

Or

There have been the following previous proceedings with regard to the marriage by or on behalf of the parties:

Serial	Name of Parties	Nature of Proceedings with Section of that Act	Number and year of the case	Name and location of court	Result
--------	-----------------	--	-----------------------------	----------------------------	--------

(i)

(ii)

(iii)

(iv)

(Choose whichever is applicable to the facts)

11. That the marriage was solemnized at..... The parties last resided together at..... The parties are now residing at (Within the local limits of the ordinary original jurisdiction of this Court.)

12. That this Hon'ble Court has jurisdiction to try and entertain this petition

PRAYER:

In view of the above facts and circumstances, it is, therefore, most respectfully and humbly prayed that this Hon'ble Court may be pleased to grant a decree of divorce under Section 13 of HMA in favor of petitioner.

Any other relief/order/Direction this Hon'ble Court may deem fit in the interest of justice and equity.

PETITIONER
THROUGH
ADVOCATE

VERIFICATION:

The above named petitioner states on solemn affirmation that paras 1 to ____ of the petition are true to the petitioner's knowledge and paras ____ to ____ are true to the petitioner's information received and believed to be true by him/her.

Verified at _____ (Place)

Dated _____

PETITIONER

[**Note :** An affidavit of the petitioner is to be appended.]

* * * * *

**PETITION FOR DISSOLUTION OF MARRIAGE BY A DECREE OF DIVORCE BY
MUTUAL CONSENT**

IN THE COURT OF PRINCIPAL JUDGE, FAMILY COURT (DISTT.), DELHI

HMA PETITION NO. _____ OF 2017

IN THE MATTER OF:

X _____ ... PETITIONER NO. 1

AND

Y _____ ... PETITIONER NO. 2

**PETITION FOR DISSOLUTION OF MARRIAGE BY A DECREE OF DIVORCE BY
MUTUAL CONSENT UNDER SECTION 13-B(1) OF THE HINDU MARRIAGE ACT,
1955**

Most Respectfully Showeth:

1. That a marriage was solemnized between the parties according to Hindu rites and ceremonies on _____ (date) at _____ (place). A certified copy of the relevant extract from the Hindu Marriage Register is filed herewith. An affidavit, duly attested statting these facts is filed herewith.

2. That the status and place of residence of the parties to the marriage before the marriage and at the time of filing the petition are as follows:

	Husband			Wife		
	Status	Age	Place of Residence	Status	Age	Place of Residence
(i) Before marriage						
(ii) At the time of filing the petition						

(Whether a party is a Hindu by religion or not is as part of his or her status).

3. (In this paragraph state the place where the parties to the marriage last resided together and the names of the children, if any, of the marriage together with their sex, dates of birth or ages.)

4. That the parties to the petition have been living separately since _____ and have not been able to live together since then. (In few paragraphs, mention the reasons for not being able to live together. In case there is a settlement between parties, the same can also be mentioned).

5. That the parties to the petition have mutually agreed that their marriage should be dissolved.

6. That the mutual consent has not been obtained by force, fraud or undue influence.

7. That the petition is not presented in collusion.

8. That there has not been any unnecessary or improper delay in instituting the proceedings.

9. That there is no other legal ground why relief should not be granted.

10. That the petitioners submit that this Court has jurisdiction to entertain this petition.
(Mention how the court has jurisdiction to entertain the petition).

PRAYER:

In view of the above facts and circumstances, it is, therefore, most respectfully and humbly prayed that this Hon'ble Court may be pleased to grant a decree of divorce on mutual consent thereby dissolving the marriage between petitioner No. 1 and Petitioner No. 2 on the ground of mutual consent.

PETITIONER NO. 1

PETITIONER NO. 2

THROUGH

COUNSEL

VERIFICATION:

The above named petitioner states on solemn affirmation that paras 1 to ____ of the petition are true to the petitioner's knowledge and paras _____ to _____ are true to the petitioner's information received and believed to be true by him/her.

Verified at _____ (Place)

Dated _____

PETITIONER NO. 1

PETITIONER NO. 2

[**Note :** Separate affidavits of petitioner no. 1 and petitioner no. 2 to be appended]

* * * * *

DRAFT AFFIDAVIT IN MATRIMONIAL PLEADINGS

**IN THE COURT OF PRINCIPAL JUDGE, FAMILY COURT, ROHINI COURT
(DIST.....), DELHI.**

H.M.A. PETITION NO. /2015

IN RE:-

SMT. A

W/O

R/O

...PETITIONER

VERSUS

SH. B

W/O

R/O

...RESPONDENT

AFFIDAVIT OF SMT. A, W/O..... D/O..... AGED ABOUT..... R/O.....

I, the above named Deponent do hereby solemnly affirm and declare as under:

1. That I am the petitioner in the aforesaid matter and as such I am well aware about the facts of the present case and thus competent to depose the same.
2. That my marriage was solemnized with the respondent, according to Hindu Rites and ceremonies on at Delhi.
3. That the present petition has not been presented in collusion with the respondent.
4. That there is no improper or undue delay in filing the present petition.
5. That the consent for filing the present petition has not been obtained by fraud, force, pressure or undue influence.
6. That the contents of the accompanying petition U/Sof the Hindu Marriage Act. 1955, as amended upto date, have been drafted by my counsel as per my instructions and contents of the same have been duly read and understood by me and after fully understanding the contents of the same, I hereby state that the fact stated therein are all true and correct to my knowledge and the fact stated therein may kindly be read as part and parcel of the present affidavit also as the contents of the same have not been reproduced herein for the sake of brevity.

DEPONENT

VERIFICATION:

I,, do hereby verify on this ____day of January, 2016 at Delhi that the contents of the above said affidavit are true and correct to my knowledge and information and nothing material has been concealed therefrom.

DEPONENT

APPLICATIONS UNDER THE INDIAN SUCCESSION ACT PETITION FOR GRANT OF PROBATE

**IN THE HIGH COURT OF DELHI AT NEW DELHI
(TESTAMENTARY & INTESTATE JURISDICTION)**

PROBATE CASE NO.OF 2017

IN THE MATTER OF:

THE ESTATE OF LATE SH..... (DECEASED)

IN THE MATTER OF:

X _____
S/O
R/O

... APPLICANT/PETITIONER

VERSUS

1. State of _____

2. Y _____
S/O
R/O

...RESPONDENTS

PETITION FOR GRANT OF PROBATE

To

The Hon'ble Mr Justice, Chief Justice
And his Companion Justices of this Hon'ble Court

Most Respectfully Showeth:

1. That the present petition is filed by the petitioner for the grant of probate in respect of the estate of deceased Late Sh.....S/O..... At the time of his death on.....the deceased was residing.....
2. That during his lifetime before his death the deceased had bequeathed his estate in the manner specified in his last and final testament/will dated... , which was made by him in the sound state of mind. The Original Will is annexed as Annexure A.
3. That the said will was duly made by the deceased in presence of the witnesses whose names, addressed and signatures appear at the end of the Will.

4. That by virtue of the said will, the deceased has bequeathed.....(mention how the deceased has bequeathed his estate, name, relation and the individual share of the person and also mention whether he has excluded any of his legal heirs from the will.).

5. That a description of the relatives of the deceased, and their respective residences are given below:

(1) Son (Petitioner)

(2) Brother, Sri.....resident of.....

(3) Widow, Sreemati.....resident of.....

(4) Mother, Sreemati.....resident of.....

(5) Daughter, Sreemati.....resident of.....

(All the relatives will be made as Respondents)

6. That the amount of the assets of the deceased which are likely to come to the hands of the petitioner, are detailed in Schedule-A, which is annexed with the present petition. The petitioner has set forth all the assets and liabilities with complete particulars of the estate of the deceased as the petitioner could ascertain as of now with the best of his efforts.

7. That so far as your petitioner has been able to ascertain and is aware there are no properties and effects other than those specified in the affidavit of assets.

8. That the petitioner undertakes in case of any other properties and effects coming to his hands to pay Court-fees payable in respect thereof.

9. That there is no legal impediment to the grant of probate in favour of the petitioner.

10. That the petitioner undertakes to execute the Will of the testator as per his wishes and undertake to take all steps as per his wishes and desires and directions of the deceased as contained in the Will annexed.

11. That the petitioner is claiming the probate of the Will and has filed this petition being the named executor in the Will.

12. That to the best of the belief of the petitioner, no petition has been made to any other court for the purpose of the said Will.

13. That the deceased died and had a fixed abode within the territorial jurisdiction of this Hon'ble Court. The immovable property is also situated within the jurisdiction of this Hon'ble Court and therefore this Hon'ble Court has the jurisdiction to entertain, try and decide this petition.

PRAYER:

It is, therefore, most humbly prayed that:

a. The probate of the Will be granted to the petitioner.

b. Any other or further relief which this Hon'ble Court may deem fit just proper and necessary may also be granted in favour of the petitioner.

Place:

PETITIONER

Date:

ADVOCATE

VERIFICATION:

I,, S/o....., R/o....., the petitioner in the above petition, declare that what is stated herein is true to the best of my information and belief. Last para is the prayer to this Hon'ble Court.

Verified at New Delhi on this day of.....

PETITIONER

VERIFICATION:

I,S/o....., R/o....., one of the witness to the last WILL and Testament of the Testator mentioned in the above petition, declare that I was present and saw the said Testator affix his signature on the WILL annexed to the above petition and acknowledge the writing annexed to the above petition to be his Last WILL and Testament in my presence.

WITNESS NO. 1

VERIFICATION:

I, W/o....., R/o....., one of the witness to the last WILL and Testament of the Testator mentioned in the above petition, declare that I was present and saw the said Testator affix his signature on the WILL annexed to the above petition and acknowledge the writing annexed to the above petition to be his Last WILL and Testament in my presence.

WITNESS NO. 2

[NOTE : To be supported by an affidavit]

* * * * *

PETITION FOR GRANT OF LETTERS OF ADMINISTRATION

IN THE COURT OF THE DISTRICT JUDGE (DISTRICT _____), DELHI

CASE NO..... UNDER ACT XXXIX OF 1925

IN THE MATTER OF A PETITION FOR LETTERS OF ADMINISTRATION
OF THE ESTATE OF THE LATE _____

IN THE MATTER OF:

X.....PETITIONER

VERSUS

1. STATE _____

2. Y _____ ...RESPONDENTS

PETITION FOR GRANT OF LETTERS OF ADMINISTRATION

Most Respectfully Showeth:

1. That the present petition is filed by the petitioner for the grant of letters of administration in respect of the estate of deceased Late Sh.....S/O..... At the time of his death on.....the deceased was residing.....

2. That during his lifetime before his death the deceased had bequeathed his estate in the manner specified in his last and final testament/will dated....., which was made by him in the sound state of mind. The Original Will is annexed as Annexure A.

3. That the said will was duly made by the deceased in presence of the witnesses whose names, addresses and signatures appear at the end of the Will.

4. That by virtue of the said will, the deceased has bequeathed.....(mention how the deceased has bequeathed his estate, name, relation and the individual share of the person and also mention whether he has excluded any of his legal heirs from the will.).

5. That a description of the relatives of the deceased, and their respective residences are given below:

(1) Son (Petitioner)

(2) Brother, Sri.....resident of.....

(3) Widow, Sreemati.....resident of.....

(4) Mother, Sreemati.....resident of.....

(5) Daughter, Sreemati.....resident of.....

(All the relatives will be made as Respondents)

6. That the amount of the assets of the deceased which are likely to come to the hands of the petitioner, are detailed in Schedule-A, which is annexed with the present petition. The petitioner has set forth all the assets and liabilities with complete particulars of the estate of the deceased as the petitioner could ascertain as of now with the best of his efforts.

-
7. That so far as your petitioner has been able to ascertain and is aware there are no properties and effects other than those specified in the affidavit of assets.
 8. That the petitioner undertakes in case of any other properties and effects coming to his hands to pay Court-fees payable in respect thereof.
 9. That there is no legal impediment to the grant of letters of administration in favour of the petitioner.
 10. That the petitioner undertakes to execute the Will of the testator as per his wishes and undertake to take all steps as per his wishes and desires and directions of the deceased as contained in the Will annexed.
 11. That the petitioner is claiming the letters of administration of the Will and has filed this petition being the beneficiary mentioned in the Will.
 12. That to the best of the belief of the petitioner, no petition has been made to any other court for the purpose of the said Will.
 13. That the deceased died and had a fixed abode within the territorial jurisdiction of this Hon'ble Court. The immovable property is also situated within the jurisdiction of this Hon'ble Court and therefore this Hon'ble Court has the jurisdiction to entertain, try and decide this petition.

PRAYER:

It is, therefore, most humbly prayed that:

- a. The Letters of Administration of the Will be granted to the petitioner.
- b. Any other or further relief which this Hon'ble Court may deem fit just proper and necessary may also be granted in favour of the petitioner.

Place:

PETITIONER

Date:

THROUGH

ADVOCATE

VERIFICATION:

I,, S/o....., R/o....., the petitioner in the above petition, declare that what is stated herein is true to the best of my information and belief. Last para is the prayer to this Hon'ble Court.

Verified at New Delhi on this day of.....

PETITIONER

VERIFICATION:

I,S/o....., R/o....., one of the witness to the last WILL and Testament of the Testator mentioned in the above petition, declare that I was present and saw the said Testator affix his signature on the WILL annexed to the above petition and acknowledge the writing annexed to the above petition to be his Last WILL and Testament in my presence.

WITNESS NO. 1

VERIFICATION:

I, W/o....., R/o....., one of the witness to the last WILL and Testament of the Testator mentioned in the above petition, declare that I was present and saw the said Testator affix his signature on the WILL annexed to the above petition and acknowledge the writing annexed to the above petition to be his Last WILL and Testament in my presence.

WITNESS NO. 2

[NOTE : To be supported by an affidavit]

* * * * *

PETITION FOR THE GRANT OF SUCCESSION CERTIFICATE

**IN THE COURT OF THE ADMINISTRATIVE CIVIL JUDGE, ROHINI COURT
(DIST.....), DELHI
SUCCESSION PETITION NO.....OF.....**

IN THE MATTER OF:

X _____

S/O

R/O

... APPLICANT/PETITIONER

VERSUS

1. STATE _____

2. Y _____

S/O

R/O

...RESPONDENTS

**PETITION FOR THE GRANT OF SUCCESSION CERTIFICATE IN RESPECT OF
THE GOODS, DEBTS AND SECURITIES ETC. OF(deceased)
UNDER SEC.372 OF THE INDIAN SUCCESSION ACT, 1925.**

MOST RESPECTFULLY SHOWETH:

- (1) That the above-named died at(residential address)..... on or about the day of, 20..... .
- (2) That the said Deceased died intestate and that due and diligent search has been made for a Will but none has been found.
- (3) That deceased named above hereinafter referred to being the said deceased who had been during his lifetime till his death permanently residing and living at the abovesaid premises within the jurisdiction of this court and was by nationality and faith a Hindu citizen of India ruled by Dayabhaga /Tamil School of Hindu Law.
- (4) That the said Deceased at the time of his death left him surviving his only next-of-kin according to law (state law) residing at.....
- (5) That the Petitioner as(state relation) of the Deceased claims to be entitled to a share of the estate.
- (6) That there is no impediment under Section 370 of the Indian Succession Act, 1925 or under any other provision of this Act or any other enactment to the grant of the certificate or the validity thereof, if it were granted.
- (7) That the Petitioner has truly set forth in Schedule I hereto the securities in respect of which the certificate is applied for. The Succession Certificate is required for purpose of (state the purpose for which succession certificate is required). The said assets in respect of which the Succession Certificate is required are under the value of Rs.....

(8) That no application has been made to any District Court or Delegate or to any High Court for Probate of any Will of the said Deceased or for letters of Administration with or without the Will annexed to his property and credits.

(9) That no application for Succession Certificate in respect of and debt or security belonging to the estate of the Deceased has been (Or if made, state to what Court, by what person and what proceedings have been taken) made to any District Court or Delegate or to any High Court.

(10) That ad valorem duty of Rs. payable relating to grant of Succession Certificate hereunder prayed for has been paid.

(11) That this application is made bonafide.

PRAYER:

The Petitioner therefore prays:

(i) That a Succession Certificate, may be granted to the Petitioner in respect of debts and securities set forth in Schedule I hereto with power to collect and/or receive and/or realise the same inclusive of all interests accrued thereon and to sell and/or negotiate and/or deal with the same without any impediment.

(ii) That the Petitioner be exempted from presenting any security on that account.

PETITIONER
THROUGH
COUNSEL

VERIFICATION:

I the Petitioner above named, do solemnly declare that what is stated in paragraphs is true to my knowledge and that what is stated in the remaining paragraphs is true to information received from and believed to be true.

.....
PETITIONER

[NOTE : To be supported by an affidavit]

* * * * *